

the present period of such commencement; nevertheless earlier title than forty years may be required in cases similar to those in which earlier title than sixty years may now be required."

And the *second* section (as to any contract made *after 31st December, 1874*, and subject to any stipulation to the contrary), enacts:—

(1). That "under a contract to grant or assign a *term of years*, whether derived or to be derived out of a freehold or leasehold estate, the intended lessee or assign shall not be entitled to call for the title to the *freehold*."

(2). That recitals, statements and descriptions of facts, matters, and parties in instruments twenty years old "shall, unless and except so far as they shall be *proved* to be *inaccurate*, be taken to be sufficient evidence of the truths of such facts, matters and descriptions."

(3). That "the inability of the vendor to furnish the purchaser with a *legal covenant*" for production of documents shall not be an objection to the title, if "the purchaser will, on completion of the contract, have an *equitable right* to the production."

(4). That "such covenants for production as the purchaser can and shall require, shall be furnished at *his* expense, and the *vendor* shall bear the expense of perusal and execution on behalf of and by himself, and on behalf of and by necessary parties other than the purchaser."

(5). That "where the vendor retains *any part* of an estate to which any documents of title relate, he shall be entitled to *retain* such documents."

By the *third* section, it is enacted that "*trustees* who are either vendors or purchasers may sell or buy without excluding the operation of the *second* section."

This express reference to the *second* section, suggests a doubt whether by implication trustees were meant to be excluded from the benefit of the *first* section. It is conceived, however, that no such distinction was intended, and that trustees who buy or sell may take advantage of the general enactment contained in the *first* section.

[46. 44 & 45 Vict. c. 41.—The 3d section of the Con-